

Ram Nain Prasad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 January 2023 · WRIT-C No. 38068 of 2022 · WRIT - C No. 38068 of 2022 · **Writ disposed; petitioner relegated to Supply Code clause 6.14.**

HEADNOTE

The Allahabad High Court declined to entertain a writ challenging an electricity recovery certificate of Rs.2,08,900 plus recovery charges. Clause 6.14 of the Uttar Pradesh Electricity Supply Code, 2005 was treated as an efficacious remedy. The petition was disposed of with liberty to take that Code recourse, the competent authority to proceed strictly in accordance with law.

FACTUAL SUMMARY

Ram Nain Prasad challenged a recovery-certificate notice dated 14 October 2022 for Rs.2,08,900 plus recovery charges, issued for electricity dues by the Executive Engineer, Vidyut Vitran Khand-2nd, U.P. Power Corporation, Azamgarh. Counsel for the Corporation objected that the Uttar Pradesh Electricity Supply Code, 2005 was a complete code and that clause 6.14 furnished an efficacious remedy. The petitioner's counsel stated that the petitioner was willing to pay the recovered amount in easy instalments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

clause 6.14 as alternative remedy to writ against recovery

HOLDING

A writ petition challenging an electricity recovery certificate is not entertained where clause 6.14 of the Uttar Pradesh Electricity Supply Code, 2005 furnishes an efficacious remedy. The consumer may take recourse under that provision; the competent authority is to proceed strictly in accordance with law. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14

The Court treated clause 6.14 as the efficacious Code remedy for a consumer facing a recovery certificate who was willing to pay in instalments, and declined to decide the writ on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 14.10.2022 AND THE UNDERLYING ELECTRICITY DUES OF RS.2,08,900

Writ not entertained on the existence of the clause 6.14 remedy; no merits finding on the recovery. ¶ 1